

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
April 23, 2026  
8:30 AM/1:30 PM

**15. FREDERICK GUNRAN V. PATRICIA GUNDRAN**

**25FL0827**

Respondent filed a Request for Order (RFO) along with an Order Shortening Time (OST) on April 8, 2026. On April 10, 2026, the court granted the OST and set the matter for a hearing on April 23, 2026. Respondent was directed to serve Petitioner on or before April 10, 2026. Petitioner was directed to file a Responsive Declaration on or before April 17, 2026. Proof of Service shows Petitioner was personally served on April 10<sup>th</sup>.

Petitioner filed a Responsive Declaration on April 20, 2026. It was served on April 20<sup>th</sup>. The court finds this to be late filed, and therefore has not considered it.

Family Code section 2337 provides that “[i]n a proceeding for dissolution of marriage, the court, upon noticed motion, may sever and grant an early and separate trial on the issue of the dissolution of the status of the marriage apart from other issues.” Fam. Code, § 2337(a). The trial court may separately try the issue of termination of marriage if doing so “is likely to simplify the determination of the other issues.” Cal. Rules of Court, rule 5.390(b)(7).

Public policy favors bifurcation of trial on pivotal issues in a dissolution action. In re Marriage of Macfarlane & Lang (1992) 8 Cal.App.4th 247, 257; see In re Marriage of Wolfe (1985) 173 Cal.App.3d 889, 893–894 (“To the extent bifurcation of issues such as custody, support or the division of community property can assist the parties to achieve settlement of remaining issues, it should be encouraged”). For the issue of marital status, “[c]onsistent with the legislative policy favoring no fault dissolution of marriage, only slight evidence is necessary to obtain bifurcation and resolution of marital status. On the other hand, a spouse opposing bifurcation must present compelling reasons for denial.” Gionis v. Superior Court (1988) 202 Cal.App.3d 786, 790.

The minimum statutory requirements for bifurcating and terminating marital status are that six months must have passed since the date of service of the summons and petition (§ 2339(a)), and that the party seeking termination of marital status must have served a preliminary declaration of disclosure or obtained a written agreement to defer service to a later date (§ 2337, subd. (b)). Both requirements were met here. Further, the necessary pension plan has been joined.

Parties are ordered to appear for the hearing.

**TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

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**16. SONIA JOHNSON V. THOMAS JOHNSON**

**PFL20190519**

Petitioner filed a Request for Order (RFO) on February 25, 2026, following the court's denial of her ex parte application. Petitioner seeks an order from the court to place the proceeds of the sale of the former marital residence into a constructive trust. Petitioner further seeks Family Code section 271 sanctions in the amount of \$2,500. Upon review of the court file, there is no Proof of Service showing the RFO was served on Respondent.

The court drops the matter from calendar due to the lack of proper service.

**TENTATIVE RULING #16: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**